

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #12	CCRB Case #: 201904691	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/21/2019 10:06 PM	Location of Incident: Broadway and West 145th Street	Precinct: 30	18 Mo. SOL 11/21/2020	EO SOL 7/8/2021	
Date/Time CV Reported Thu, 05/23/2019 10:56 PM	CV Reported At: IAB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 05/31/2019 11:02 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Martin Sierra	17120	958070	030 PCT
2. SGT Ryan Gargan	01447	950475	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Isaac Acosta	16660	963835	030 PCT
2. POM Brandon Everett	11197	962391	030 PCT
3. POM Tyler Morales	21037	963169	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Ryan Gargan	Abuse: Sergeant Ryan Gargan frisked § 87(2)(b)	
B.SGT Ryan Gargan	Discourtesy: Sergeant Ryan Gargan acted discourteously toward § 87(2)(b)	
C.POM Martin Sierra	Abuse: Police Officer Martin Sierra threatened § 87(2)(b) with the use of force.	
D.SGT Ryan Gargan	Abuse: Sergeant Ryan Gargan searched the vehicle in which § 87(2)(b) was an occupant.	
E.POM Martin Sierra	Abuse: Police Officer Martin Sierra searched the vehicle in which § 87(2)(b) was an occupant.	
F.SGT Ryan Gargan	Abuse: Sergeant Ryan Gargan seized § 87(2)(b)'s property.	

Case Summary

On May 23, 2019, § 87(2)(b) filed this complaint with IAB, and it was subsequently received at the CCRB on May 31, 2019.

On May 21, 2019, at approximately 10:06 p.m., § 87(2)(b) drove his vehicle in the vicinity of Broadway and West 145th Street in Manhattan, when Sgt. Ryan Gargan and PO Martin Sierra of the 30th Precinct stopped his vehicle. During the course of the vehicle stop, Sgt. Gargan frisked § 87(2)(b) (**Allegation A -Abuse of Authority: Frisk,** § 87(2)(g)). Sgt. Gargan then allegedly threw documents belonging to § 87(2)(b) onto the roof of his vehicle, causing them to fall (**Allegation B -Discourtesy: Action,** § 87(2)(g)). When § 87(2)(b) attempted to pick up the items, PO Sierra allegedly told him, “If you move, we’re gonna put you down” (**Allegation C -Abuse of Authority: Threat of force (verbal),** § 87(2)(g)).

Sgt. Gargan (**Allegation D -Abuse of Authority: Vehicle search,** § 87(2)(g)) and PO Sierra (**Allegation E -Abuse of Authority: Vehicle search,** § 87(2)(g)) searched § 87(2)(b)'s vehicle. § 87(2)(b) was arrested as a result of the incident § 87(2)(b).

§ 87(2)(b) (Board Review 01). As a result of the arrest, Sgt. Gargan seized § 87(2)(b)'s vehicle (**Allegation F -Abuse of Authority: Seizure of property,** § 87(2)(g)).

Video footage obtained in this case was recorded by Sgt. Gargan, PO Sierra, PO Isaac Acosta, PO Brandon Everett, and PO Tyler Morales via their Body-Worn Cameras (BWCs) (Board Reviews 02 to 07) and provided to the CCRB by the NYPD's Legal Bureau.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Ryan Gargan frisked § 87(2)(b)

It is undisputed that on May 21, 2019, at approximately 10:06 p.m., Sgt. Gargan conducted a vehicle stop of § 87(2)(b) in the vicinity of Broadway and West 145th Street in Manhattan and that this incident resulted in § 87(2)(b)'s arrest. It is also undisputed that during the vehicle stop, Sgt. Gargan frisked § 87(2)(b).

In his testimony to the CCRB, § 87(2)(b) stated (Board Review 08) that during the incident, he denied smoking marijuana inside his vehicle when speaking with Sgt. Gargan. § 87(2)(b) acknowledged to the CCRB that he had two items containing marijuana: a “half-smoked” marijuana cigar in an ashtray in the center console of his vehicle and an eyeglasses case containing a glass pipe with marijuana inside it in the rear passenger seat.

In his testimony to the CCRB, Sgt. Gargan stated (Board Review 09) that after § 87(2)(b) exited his vehicle, he immediately detected the odor of marijuana emanating from § 87(2)(b)'s vehicle. Sgt. Gargan frisked § 87(2)(b) after this, not suspecting that § 87(2)(b) was armed for any reason other than his “fidgety” movements and failure to stop his vehicle immediately upon the officers’ directing him to do so. With respect to the recognition of marijuana and its packaging, Sgt. Gargan had received NYPD Academy training, Field Test training in 2013, and

Street Narcotics Enforcement Unit (SNEU) training in 2015. The SNEU training involved visual and olfactory detection of marijuana and testing kits for marijuana. The olfactory component of this training did not involve actual lit or unlit marijuana. Sgt. Gargan had, in his experience as an officer in SNEU and dealing with drug activity conditions, encountered marijuana that was either within a vehicle, held by a person, or smoked by a person in public view. At the time of his CCRB interview, Sgt. Gargan had been encountering the odor of marijuana on a daily basis while on duty.

§ 87(2)(b), § 87(2)(g)

Upon detecting the odor of marijuana in a vehicle, officers may search the vehicle's occupants and the vehicle itself. People v. Chestnut, 43 A.D.2d 260 (1974) (Board Review 10).

§ 87(2)(b), § 87(2)(g)

Allegation (B) Discourtesy: Sergeant Ryan Gargan acted discourteously toward § 87(2)(b)

§ 87(2)(b):

Allegation (C) Abuse of Authority: Police Officer Martin Sierra threatened § 87(2)(b)
with the use of force.

§ 87(2)(b) stated that after he exited his vehicle, Sgt. Gargan stood next to him on the driver side, and PO Sierra moved from the vehicle's passenger side to its driver side. Sgt. Gargan threw § 87(2)(b)'s driver license and vehicle registration onto the vehicle's roof. § 87(2)(b)'s driver license fell along the front driver door window, and the vehicle registration fell to the ground. § 87(2)(b) moved his hands from the vehicle's roof in an attempt to retrieve the fallen documents, and PO Sierra said, "If you move, we're gonna put you down."

Sgt. Gargan denied throwing § 87(2)(b)'s documents in the manner alleged, and, in his testimony to the CCRB, PO Sierra (Board Review 17) denied seeing him do so. PO Sierra denied threatening § 87(2)(b) and Sgt. Gargan denied hearing him do so.

The video footage that both Sgt. Gargan and PO Sierra recorded on their BWCs captures the entirety of the period during which § 87(2)(b) stood outside his vehicle on its driver side. Portions of these footage files were, § 87(2)(g) displayed next to each other, with PO Sierra's video stream on the left, Sgt. Gargan's video stream on the right, and only Sgt. Gargan's audio stream playing (Board Review 11). In this file, 01m24s in length, Sgt. Gargan and § 87(2)(b) are heard discussing § 87(2)(b)'s documents. Sgt. Gargan reaches his right hand towards the roof of § 87(2)(b)'s vehicle, appearing to place something on it. Approximately thirty seconds later, PO Sierra asks § 87(2)(b) where his driver license is. § 87(2)(b) says, "Right here, sir," reaches to the same location on the vehicle roof that Sgt. Gargan had previously reached, and says, "Here," handing something to PO Sierra. PO Sierra subsequently requests that

another officer “run” § 87(2)(b) s driver license, and he walks to the rear of § 87(2)(b) s vehicle, where Sgt. Gargan instructs § 87(2)(b) to stand. During this process, PO Sierra makes no statement to § 87(2)(b) to the effect of “putting [him] down” or referencing his moving.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation (D) Abuse of Authority: Sergeant Ryan Gargan searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: Police Officer Martin Sierra searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that Sgt. Gargan and PO Sierra searched § 87(2)(b) s vehicle.

Sgt. Gargan stated that he searched § 87(2)(b) s vehicle due to his detection of the odor of marijuana emanating from it and due to § 87(2)(b) acknowledging to him that he was a marijuana smoker. PO Sierra stated that § 87(2)(b) requested that officers retrieve a document from his vehicle, and as he attempted to do so, he detected the odor of marijuana in the front driver side of § 87(2)(b) s vehicle. Due to this and § 87(2)(b) stating that he had “just smoked” marijuana, PO Sierra searched the vehicle, thinking that he may recover marijuana from inside it.

§ 87(2)(b), § 87(2)(g)

Allegation (F) Abuse of Authority: Sergeant Ryan Gargan seized § 87(2)(b) s property.

It is undisputed that Sgt. Gargan seized § 87(2)(b) s vehicle for transport to the 30th Precinct stationhouse after § 87(2)(b) s arrest, that § 87(2)(b) had been the only occupant of his vehicle at the time of this incident, and that the vehicle was returned to its registered owner after § 87(2)(b) s arrest.

At the outset of Sgt. Gargan’s BWC footage, § 87(2)(b) is seated in his vehicle, which is stopped parallel to a storefront displaying the word “cricket.” In Google StreetView images of this location (Board Review 12), signage related to a bus stop displays “no standing” and an arrow pointing southwards, towards the same storefront visible in Sgt. Gargan’s BWC footage.

Driving, parking, or standing in a bus lane during hours of operation is a violation. City of New York Bus Lane Rules (Board Review 13).

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three CCRB complaints and has been named as a victim in nine allegations (Board Review 14):
 - § 87(2)(g)
- Sgt. Gargan has been a member-of-service for eight years and has been a subject in four CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO Sierra has been a member-of-service for five years, and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- On January 9, 2020, a Notice of Claim inquiry was sent to the New York City Office of the Comptroller, and the results will be added to the case file upon receipt (Board Review 15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date